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Case Summary Report

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User Problem: The user's brother has allegedly evicted them from their jointly owned home and taken illegal possession of the property. The user possesses the house registry, which is in both their names.

Case Category: property_dispute

Confidence: 100%

Rights Summary:

- * Right to co-ownership and possession of property.
- * Right to protection against illegal eviction.
- * Right to seek legal recourse for unlawful dispossession.

Readiness Score: 60%

Breakdown:

- * Documentation: 80% (Has registry and Fard)
- * Police Action: 0% (No FIR filed yet)
- * Legal Consultation: 0% (Has not consulted a lawyer)
- * Immediate Danger: 50% (Evicted but not physically harmed)
- * Evidence of Ownership: 100% (Registry available)

Missing Documents with Costs:

- * FIR (First Information Report) - No cost, but requires police interaction.
- * Lawyer's Consultation - Estimated cost: PKR 5,000 - 15,000.
- * Court Fee (for potential civil suit) - Varies based on property value, typically a percentage.

Key Risks Highlighted:

- * Prolonged illegal occupation by the brother if legal action is not initiated promptly.
- * Potential for further deterioration of family relations.
- * Difficulty in proving sole ownership if the registry is joint.
- * Risk of property damage or unauthorized alterations by the brother.

Retrieved Statutory Laws and Court Procedures:

1. **Specific Relief Act, 1877:**

* **Section 8 (Recovery of Specific Immovable Property):** "Any person entitled to the possession of specific immovable property may recover it in the manner prescribed by the Code of Civil Procedure." This section allows a person who has been dispossessed from their property to file a suit for its recovery.

* **Section 9 (Suit by person dispossessed of immovable property):** "If any person is dispossessed without his consent of immovable property otherwise than in due course of law, he may, by suit, recover

possession thereof, notwithstanding any other title that may be set up in such suit." This section provides a summary remedy for a person dispossessed from their immovable property, allowing them to recover possession without proving title, provided they were dispossessed illegally.

2. **Pakistan Penal Code, 1860 (PPC):**

Section 441 (Criminal trespass): "Whoever enters into or upon property in the possession of another with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property, or having lawfully entered into or upon such property, unlawfully remains there with intent thereby to intimidate, insult or annoy any person in possession of such property, or with intent to commit an offence, is said to commit 'criminal trespass'." This section can be relevant if the brother's actions constitute criminal trespass.

Section 447 (Punishment for criminal trespass): "Whoever commits criminal trespass shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five hundred rupees, or with both." This section prescribes the punishment for criminal trespass.

Section 506 (Punishment for criminal intimidation): If the brother has used threats to evict the user, this section could be applicable. "Whoever commits the offence of criminal intimidation shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both."

3. **Code of Civil Procedure, 1908 (CPC):**

Order XXXIX, Rule 1 & 2 (Temporary Injunctions): These rules allow the court to grant a temporary injunction to restrain a party from committing acts of trespass or dispossession during the pendency of a suit. This can be crucial to prevent further harm or alienation of the property.

Order XXI (Execution of Decrees and Orders): This order details the procedure for enforcing court decrees, including orders for possession of immovable property.

4. **Qanoon-e-Shahadat Order, 1984 (Law of Evidence):**

Article 79 (Proof of documents by primary evidence): "Documents must be proved by primary evidence except in the cases hereinafter mentioned." The registry document would be primary evidence.

Article 85 (Presumption as to documents thirty years old): This article can be relevant if the property documents are old, presuming their proper execution and attestation.

5. **Punjab Land Revenue Act, 1967 (or equivalent provincial laws for other provinces):**

Sections related to Fard (Record of Rights) and Registry: These sections define the legal standing of such documents as proof of ownership and possession. The Fard (record of rights) is maintained by the Revenue Department and provides details of land ownership and mutations.

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